

SENATE No. 968**The Commonwealth of Massachusetts**

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting access to counsel and housing stability in Massachusetts.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/27/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/27/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>1/27/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>1/29/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>1/29/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>2/4/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/11/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/12/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>3/12/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/12/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>3/19/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/20/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/7/2025</i>
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	<i>4/14/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>4/16/2025</i>
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	<i>4/22/2025</i>

SENATE No. 968

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 968) of Sal N. DiDomenico, Angelo J. Puppolo, Jr., Joanne M. Comerford, Susannah M. Whipps and other members of the General Court for legislation to promote housing stability and homelessness prevention through a right to counsel pilot program in Massachusetts in response to the COVID-emergency. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 864 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting access to counsel and housing stability in Massachusetts.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to establish forthwith a statewide access to counsel program for evictions to promote housing stability and prevent homelessness and, to respond to a housing emergency that the COVID-19 pandemic has exacerbated, and whereas, evictions lead to homelessness, housing instability, overcrowding, displacement, diminished economic opportunity, and disruption of schooling for children, all of which are associated with negative health, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 SECTION 1. Chapter 239 of the General Laws is hereby amended by adding the
2 following sections:

3 Section 16.

For purposes of sections 17 and 18 the following terms shall have the following meanings:

“Advisory committee”, the committee established pursuant to section 18(g).

“Covered proceeding”, an action brought pursuant to chapter 239, chapter 139 section 19, or similar proceedings, including administrative proceedings to terminate a mobile or project-based housing subsidy or public housing tenancy.

“Designated organization”, a not-for-profit organization that is designated by the Massachusetts Legal Assistance Corporation to contract to provide civil legal assistance and to conduct tenant outreach, engagement and education for eligible individuals.

"Eligible individual", a party in a covered proceeding who is an indigent: (i) tenant or occupant of any premises rented or leased for dwelling purposes; or (ii) owner-occupant of a 1-to-3-family dwelling that is their sole dwelling and located in the Commonwealth.

“Full legal representation”, ongoing legal representation provided by legal counsel in a designated organization to an eligible individual including all legal advice, advocacy, and assistance associated with representation. Full representation includes, but is not limited to, the filing of a notice of appearance on behalf of the eligible individual in a covered proceeding.

“Indigent”, a person who is: (i) receiving public assistance pursuant to: (1) aid to families with dependent children pursuant to chapter 118; (2) the emergency aid program for elderly and disabled residents pursuant to section 1 of chapter 117A; (3) a veterans’ benefits program; (4) Title XVI of the federal Social Security Act; (5) the Supplemental Nutrition Assistance Program, pursuant to 7 U.S.C. chapter 51; (6) refugee resettlement benefits; or (7) Medicaid, pursuant to

42 U.S.C. section 1396, et seq.; or (ii) earning an income, after taxes, that is 80 per cent or less of the current area median income established annually by the United States Department of Housing and Urban Development; or (iii) unable to pay the fees and costs of the covered proceeding in which the person is a party or is unable to do so without depriving said person or said person's dependents of the necessities of life, including food, shelter and clothing.

“Legal counsel” or “counsel”, lawyer licensed to practice law in the Commonwealth.

“Partner attorney”, an attorney employed by or affiliated with a designated organization who agrees to provide full legal representation pursuant to this act.

“Access to Counsel Program”, a statewide access to counsel program to provide full legal representation to eligible individuals in covered proceedings to be funded by a specifically dedicated general court appropriation.

Section 17.

(a) There shall be a statewide Access to Counsel Program in eviction cases to effectuate the purposes of this act, subject to appropriation, to be specifically funded by the general court and administered by the Massachusetts Legal Assistance Corporation.

(b) With specifically designated funding, the Massachusetts Legal Assistance Corporation shall establish an Access to Counsel Program to provide free legal assistance and full representation to eligible individuals in covered proceedings.

(c) The Massachusetts Legal Assistance Corporation shall issue a request for proposal through a public notice for organizations to submit proposals to become designated organizations. The notice must delineate an open and transparent process for approving requests

with input from the advisory committee. All organizations seeking to become designated organizations shall have the right to apply for funding and must identify the geographic area in which they shall represent eligible individuals. A designated organization may contract with partner attorneys to provide legal assistance and with community organizations to educate and inform tenants about their rights. Such information shall be available in multiple languages to ensure equitable access for linguistic minorities.

(d) Designated Organizations shall: (i) have substantial expertise in housing law and landlord and tenant law and substantial experience furnishing free legal assistance to eligible individuals; (ii) have a demonstrated track record of serving the low-income community, (ii) identify the geographic area in which they shall provide legal representation; (iii) have a plan to reach and provide legal representation to income eligible persons with limited English proficiency; (iv) provide appropriate supervision and training; (v) incorporate paralegals, legal interns or law students, where possible, to be supervised by legal counsel; and (vi) satisfy other criteria established the Massachusetts Legal Assistance Corporation with input from the advisory committee. Nothing herein shall interfere with any legal counsel carrying out their professional responsibilities to their clients as established in the canons of ethics and the code of professional responsibility adopted by the supreme judicial court.

(e) The Massachusetts Legal Assistance Corporation shall issue a request for proposal for qualified legal aid organizations to coordinate representation of eligible tenants statewide and a request for proposal for a qualified legal aid organization to coordinate representation of eligible owner-occupants. Such organizations shall provide statewide programmatic support and programmatic advocacy in addition to convening statewide trainings and forums for cross-training of attorneys in order to effectuate the purpose of this act.

(f) The Massachusetts Legal Assistance Corporation shall be responsible for exercising oversight, implementing fiscal controls, and for all data collection, deliverables, and ongoing programmatic evaluation.

(g) The Massachusetts Legal Assistance Corporation shall appoint an advisory committee with fifteen members from diverse regions of the Commonwealth that includes, but is not limited to, low-income tenants, low-income owner-occupants, non-profit community-based organizations, statewide advocacy organizations, and municipal officials. Each member shall have a

demonstrated commitment to homelessness prevention and housing stability. The advisory committee shall advise on matters and policies affecting the Access to Counsel Program and shall be convened by the Massachusetts Legal Assistance Corporation on a regular basis, but no less than twice a year.

(h) The Massachusetts Legal Assistance Corporation, in consultation with the advisory committee and designated organizations, shall determine how to phase in the access to counsel program over a period of 5 years.

Section 18.

(a) The Massachusetts Legal Assistance Corporation shall submit, with input from the advisory committee, a form to be approved by the Chief Justice of the Supreme Judicial Court that shall be used to notify individuals of their potential eligibility for access to legal counsel in covered proceedings and to the availability of housing stability resources and rental assistance programs. The supreme judicial court shall consider adopting other forms recommended by the Massachusetts Legal Assistance Corporation, with input from the advisory committee, as needed.

91 (b) Lessors must include or attach the form approved by the supreme judicial court to the
92 notice to quit and summons and complaint for covered proceedings. The trial court shall notify
93 lessors about the required form and lessors' potential eligibility for legal counsel pursuant to this
94 act. The form must be posted on the trial court's website.

95 (c) If an eligible tenant, occupant or owner-occupant did not receive the approved form
96 required pursuant to this section or legal counsel does not have sufficient time to file responsive
97 pleadings, there shall be a reasonable continuation of the proceedings so that the tenant, occupant
98 or owner-occupant can obtain legal assistance to prepare their case.

99 (d) The supreme judicial court shall approve a written waiver form for the trial court to
100 inform eligible individuals about access to legal counsel in court proceedings in order for eligible
101 individuals to knowingly and voluntarily waive the provisions of this act.

102 SECTION 2. The general court shall, subject to appropriation, fund an Access to Counsel
103 Program in the Judiciary section of the budget through a specifically dedicated line-item to be
104 administered by the Massachusetts Legal Assistance Corporation to effectuate the purposes of
105 this act.

106 SECTION 3. The provisions of this act, unless otherwise expressly provided, shall take
107 effect immediately upon passage.